

| #   | Case Name                                                | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
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| 202 | <b>Avery vs. Barandiaran</b><br><br><b>2020-01159013</b> | <p><b>Motion for Entry of Judgment</b></p> <p>The motion by plaintiff Rachel Avery, Successor Trustee of the Finiguerra Family Trust, for an Order of the Court directing the clerk to enter a Clerk’s Judgment against defendants Dan Peterson, Greenpath, Ignacio Barandiaran, Pacific Coast Title, Reverse Mortgage Advisors of America, and True Concept Title, is DENIED, without prejudice to moving party proceeding against these defendants by ordinary default procedures.</p> <p>This action is not one “arising upon contract,” or upon a separate “judgment for the recovery of money or damages only.” (Code Civ. Proc., § 585, subd. (a).) Thus, a clerk’s default judgment is not available; rather, entry of any default judgment will require evidence to be evaluated by the court. (<i>Holloway v. Quetel</i> (2015) 242 Cal.App.4th 1425, 1432 [“a clerk’s judgment is appropriate only in cases where the determination of damages is a purely ministerial act, that is, where there is ‘some definite, fixed amount of damages or where such may be ascertained by computation made by the clerk ... [i]f evidence must be taken to establish the amount due ..., the clerk may not render judgment ... if the complaint seeks nonmonetary relief or monetary relief in amounts that require additional evidence or the exercise of judgment to determine, the plaintiff must request entry of judgment by the court;” internal citations omitted]; <i>Bristol Convalescent Hospital v. Stone</i> (1968) 258 Cal.App.2d 848, 859 [“Evidence must be taken to prove the amount of damages in an action sounding in tort”]; see also original Complaint, prayer for damages at ¶¶ 1, 3, 6 [seeking “rescission of the reverse mortgage,” “return of property wrongfully taken,” and “a statutory penalty of twice the value of the property recovered”].)</p> <p>The court sets an <b>Order to Show Cause re: Dismissal for February 19, 2027 at 8:30 a.m. in Department C44</b>. Plaintiff shall file appropriate default packets as to the previously defaulted defendants by that date. If plaintiff does not file a default packet as to any previously defaulted defendant by that date, they may be dismissed at that time.</p> <p>Counsel for moving party should also be prepared at the current hearing to discuss the status of defendant Sophie Measkhan, who was named as a defendant in the First Amended Complaint (ROA 39, ¶¶ 7, 27). There is no record in the court’s files that this defendant was served with process, has appeared, been defaulted, or been</p> |

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|     |                                                                                                                    | <p>dismissed.</p> <p>Clerk shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 205 | <p><b>Connectcomp, Inc.<br/>vs. Armstrong<br/>Supply Chains<br/>Solutions, LLC</b></p> <p><b>2026-01540328</b></p> | <p><b>Motion to Compel Arbitration</b></p> <p>Defendant Armstrong Transportation Management, LLC’s petition to compel arbitration is GRANTED as follows.</p> <p>There is no opposition to the motion.</p> <p>Plaintiff Connectcomp, Inc. (plaintiff) is ORDERED to arbitrate its claims against Armstrong Transportation Management, LLC (ATM) pursuant to arbitration provision in ATM’s “Terms and Conditions.” (See Bagdanovic Decl. at Ex. C, p. 6 [“For all matters aside from equitable and extraordinary relief, Customer and Company agree to binding arbitration before a single arbitrator pursuant to the rules of the American Arbitration Association.”].)</p> <p>This petition is based on plaintiff’s signed and completed credit application with ATM, which provides that “[a]ll services rendered are subject to [ATM’s] Terms and Conditions of Service” (Terms and Conditions) and provides a conspicuous hyperlink to the same, and which Terms and Conditions in turn set forth the subject arbitration agreement. (See Bagdanovic Decl. ¶¶ 7-15, Exs. A-C.)</p> <p>The arbitration agreement is governed by the substantive provisions of the Federal Arbitration Act (FAA) because the subject contract involves interstate commerce. (9 U.S.C. § 1; Bagdanovic Decl. ¶¶ 1, 4-15, Exs. B-C.)</p> <p>The court finds that Tennessee law governs all other issues pursuant to the choice of law provision in the subject contract, including the procedural rules applicable to this motion and any contract formation/validity issues. (See 9 U.S.C. § 2; <i>Arthur Andersen LLP v. Carlisle</i> (2009) 129 S.Ct. 1896, 1902-1903 [pursuant to § 2 of FAA, state contract law governs the validity, revocability, and enforceability of an arbitration agreement]; <i>Pitzer College v. Indian Harbor Ins. Co.</i> (2019) 8 Cal.5th 93, 100-101 [choice of law analysis]; <i>Nedlloyd Lines B.V. v. Superior Court</i> (1992) 3 Cal.4th 459, 467 [that one of the parties resides in a foreign state gives the parties a reasonable ground for choosing that state’s law]; <i>Morgan Keegan &amp; Co., Inc. v. Smythe</i> (Tenn. 2013) 401 S.W.3d 595, 603 [“arbitration agreements ... are now favored in Tennessee both by statute and existing caselaw”]; <i>Mastick v. TD Ameritrade, Inc.</i> (2012) 209 Cal.App.4th 1258,</p> |